

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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HASAN HOLMES,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER JOHN
VEGA, Shield No. 27728, SERGEANT JOSEPH
SPALDING, SERGEANT ANIL GEORGE,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:

Location of Incident

Plaintiff designates Bronx
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 5, 2016

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
POLICE OFFICER JOHN VEGA, Shield No. 27728, 47th Precinct, 4111 Laconia Ave,
Bronx, NY 10466

SERGEANT JOSEPH SPALDING, 47th Precinct, 4111 Laconia Ave, Bronx, NY 10466
SERGEANT ANIL GEORGE, 47th Precinct, 4111 Laconia Ave, Bronx, NY 10466

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, HASAN HOLMES, by his attorneys, Jacobs & Hazan, LLP, as and for his
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On July 5, 2013, at approximately 5:00 p.m., plaintiff, HASAN HOLMES, while lawfully in the vicinity of the corner of Light Street and Dyre Avenue, Bronx, New York, was subjected to excessive force by the defendant New York City police officers. Plaintiff was deprived of his constitutional and common law rights when the individual defendants used excessive force against plaintiff in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff HASAN HOLMES is a resident of the State of New York.
3. POLICE OFFICER JOHN VEGA, Shield No. 27728, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. POLICE OFFICER JOHN VEGA, Shield No. 27728, is and was at all times relevant herein, assigned to the 47th Precinct.
5. POLICE OFFICER JOHN VEGA, Shield No. 27728, is being sued in his individual and official capacities.

6. SERGEANT JOSEPH SPALDING, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT JOSEPH SPALDING, is and was at all times relevant herein, assigned to the 47th Precinct.

8. SERGEANT JOSEPH SPALDING, is being sued in his individual and official capacities.

9. SERGEANT ANIL GEORGE, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. SERGEANT ANIL GEORGE, is and was at all times relevant herein, assigned to the 47th Precinct.

11. SERGEANT ANIL GEORGE, is being sued in his individual and official capacities.

12. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

13. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department (“NYPD”) as part of and in conjunction with its municipal function.

14. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

15. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

16. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

17. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

18. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

19. On July 5, 2013, at approximately 5:00 p.m., plaintiff was lawfully walking in the vicinity of the corner of Light Street and Dyre Avenue, Bronx, New York.

20. Upon information and belief, the defendant NYPD officers did not believe that plaintiff posed a threat or danger to the defendant NYPD officers.

21. No reasonable police officer would have believed that plaintiff posed a threat or danger to the defendant NYPD officers.

22. Nevertheless, the individual defendants police officers suddenly grabbed plaintiff, threw him down to the ground and started kicking and punching him about his body without any provocation or legal justification.

23. As a result of the assault, plaintiff suffered serious physical injuries, including but not limited to a laceration to his left eye and forehead.

24. The defendant police officers then handcuffed plaintiff excessively tightly without cause or legal justification, causing plaintiff severe pain to his wrists.

25. At no point in time did the defendant officers recover any drugs, weapons or contraband of any kind from plaintiff.

26. At no time did plaintiff verbally or physically threaten the defendant NYPD officers, and no reasonable police officer would believe that plaintiff verbally or physically threatened the defendant NYPD officers at any time.

27. No reasonable police officer would have believed it was necessary to use physical force against plaintiff at any time.

28. Plaintiff was subjected to excessive force by the individual defendant police officers without cause or legal justification.

29. Thereafter, plaintiff asked for medical attention for his numerous injuries, however the individual defendant police officers denied him medical treatment for several hours.

30. Plaintiff was transported to the 47th precinct and placed in a holding cell.

31. Despite bleeding from his mouth and face, and asking for medical attention, medical attention was delayed for several hours.

32. Finally, after several hours, EMS was requested and arrived at the 47th precinct.

33. EMS determined that plaintiff needed further medical treatment for the physical injuries inflicted by the police officers and on July 5, 2013, he was transported to North Central Bronx Hospital.

34. As a result of the severe beating by the defendant police officers, plaintiff suffered numerous physical injuries, including but not limited to facial injuries, back pain, neck pain, and wrist pain.

35. Thereafter, on or about July 5, 2013, plaintiff was discharged from North Central Bronx Hospital.

36. Eventually, on or about July 6, 2013, plaintiff was transported to Bronx Central Booking.

37. On or about July 6, 2013, plaintiff was arraigned and the judge set bail. which plaintiff could not post, so he was remanded to the custody of the Department of Correction.

38. Upon information and belief, Plaintiff received further medical treatment for the physical injuries inflicted by the defendant police officers while he was in the custody of the Department of Correction.

39. None of the individually named defendants intervened to prevent or stop the use of excessive force against plaintiff or prevent further injury to plaintiff.

40. By failing to intervene in order to stop the use of excessive force, these defendants demonstrated a deliberate indifference to a substantial risk of serious harm to plaintiff.

41. The incident was extremely psychologically damaging to plaintiff. Furthermore, as a result of the incident, plaintiff suffered significant and permanent physical injuries.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The use of excessive force by defendants in throwing plaintiff onto the ground, punching plaintiff in the face and body, handcuffing plaintiff excessively tightly, and kicking and punching plaintiff was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

44. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

Deliberate Indifference to Medical Needs- Violation of the Fourteenth Amendment

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. Defendants, despite being aware that plaintiff was seriously injured delayed plaintiff's medical treatment and refused to administer, and properly procure, immediate and adequate medical attention.

47. The delay in medical treatment to plaintiff's injuries resulted in further damage to plaintiff's heart that would have been prevented if plaintiff was treated in a timely manner.

48. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the Fourteenth Amendment to the United States Constitution.

49. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

THIRD CAUSE OF ACTION

Failure to Intervene

50. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

52. Defendants failed to intervene to prevent the unlawful conduct described herein.

53. As a result of the foregoing, plaintiff was brutally physically assaulted.

54. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FOURTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

57. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, subjecting individuals to excessive force without provocation or legal justification, as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to these issues.

58. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant

City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

59. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

60. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

61. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully stopped, questioned, searched and arrested.

62. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

JURY DEMAND

63. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Hasan Holmes demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
July 5, 2016

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
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ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office .

DATED: New York, New York
July 5, 2016

_____/s/_____
STUART E. JACOBS